



U.S. Department  
of Transportation

**Pipeline and Hazardous  
Materials Safety  
Administration**

**December 04, 2023**

1200 New Jersey Avenue, SE  
Washington, DC 20590

DOT-SP 21300  
(SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of batteries containing acid or alkali, battery acid fluid, non-spillable wet batteries, and lithium ion batteries (including those packed with or in equipment) in the same Mickey Body Truck transport vehicle, without being subject to certain requirements of the Hazardous Materials Regulations. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
  - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.159(e)(1) in that other hazardous materials may be transported in the motor vehicle, as provided herein; Subparts C, D, and E of Part 172 in that shipping papers, marking, and labeling are required for lithium ion batteries (new), including those packed with or contained in equipment, except as specified herein; Subpart C of Part 172 in that shipping papers are required for damaged, defective, or recalled lithium ion batteries (DDR) and used (non-DDR) lithium ion batteries, including those packed with or contained in equipment, except as specified herein; and § 171.2(k) in that a person may by marking represent that lithium ion batteries (UN3480) are present in a motor vehicle if the hazardous material (UN3480) is not present in the motor vehicle, as provided herein.

Tracking Number: 2023084767

5. BASIS: This special permit is based on the application of Distributor Operations, Inc. dba Interstate Batteries dated August 15, 2023, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous Materials Description                                                             |                        |                       |               |
|---------------------------------------------------------------------------------------------|------------------------|-----------------------|---------------|
| Proper Shipping Name                                                                        | Hazard Class/ Division | Identification Number | Packing Group |
| Batteries, wet, filled with acid, <i>electric storage</i>                                   | 8                      | UN2794                | N/A           |
| Batteries, wet, filled with alkali, <i>electric storage</i>                                 | 8                      | UN2795                | N/A           |
| Battery fluid, acid                                                                         | 8                      | UN2796                | II            |
| Batteries, wet, non-spillable, <i>electric storage</i>                                      | 8                      | UN2800                | N/A           |
| Lithium ion batteries <i>including lithium ion polymer batteries</i>                        | 9                      | UN3480                | N/A           |
| Lithium ion batteries contained in equipment <i>including lithium ion polymer batteries</i> | 9                      | UN3481                | N/A           |
| Lithium ion batteries packed with equipment <i>including lithium ion polymer batteries</i>  | 9                      | UN3481                | N/A           |

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Authorized packaging is described as follows:

(1) Lithium ion batteries (new) (including those contained in or packed with equipment) other than damaged, defective, or recalled (DDR) batteries:

(i) Prescribed packagings are unopened factory-sealed original packagings within that these retail products were previously transported.

(ii) Each battery must be securely placed in a Mickey Body Truck transport vehicle compartment in a manner that prevents short circuits and damage caused by vibration or shifting during transport.

- (2) Lithium ion batteries (used) (including those contained in or packed with equipment) other than damaged, defective, or recalled batteries (DDR):
  - (i) Batteries with a mass greater than or equal to 12 kg must be packaged in accordance with § 173.185(b)(5).
  - (ii) Batteries with a mass less than 12 kg must be packaged in accordance with § 173.185(d).
  - (iii) Each battery must be securely placed in a Mickey Body Truck transport vehicle compartment in a manner that prevents short circuits and damage caused by vibration or shifting during transport.
  - (iv) Batteries may not be stacked in the Mickey Body Truck transport vehicle.
- (3) DDR batteries, including those contained in or packed with equipment:
  - (i) Each DDR battery must be placed in individual, non-metallic inner packaging that completely encloses the battery (inner packaging).
  - (ii) Each inner packaging must be placed in a UN specification packaging with thermal insulation authorized in DOT-SP 16011 and meeting Packing Group I performance requirements.
  - (iii) End of life used batteries for recycling may be loaded into a compartment of the Mickey Body Truck transport vehicle only when they are not damaged or defective.
  - (iv) Each DDR or the end of life used lithium ion battery must be securely placed in a Mickey Body Truck transport vehicle compartment in a manner that prevents short circuits and damage caused by vibration or shifting during transport.
- (4) Compartments for new and used lithium ion batteries must be separate from those for DDR lithium ion batteries.
- (5) The aggregate gross weight of DDR lithium ion batteries (including those contained in and packed with equipment) may not exceed 150 kg (331 pounds) in a Mickey Body Truck transport vehicle.

(6) The aggregate gross weight of lithium ion batteries (new), used, and DDR including those contained in and packed with equipment may not exceed 1,000 kg (2,205 pounds) in a Mickey Body Truck transport vehicle.

(7) Battery fluid, acid:

(i) The battery acid must be packaged in a UN6HG2 composite packaging further packaged in a UN4G box. Completed packages must conform to the Packing Group III performance level. The maximum gross weight for the completed package may not exceed 37 kg (82 pounds); or

(ii) The battery acid may be packaged in accordance with § 173.202.

(iii) Packages prepared in accordance with paragraph 7.a.(7)(i) or (ii) must be securely placed in a Mickey Body Truck transport vehicle compartment in a manner that prevents short circuits and damage caused by vibration or shifting during transport.

(8) Batteries, wet, filled with acid, electric storage or Batteries, wet, filled with alkali, electric storage: Batteries must be securely placed in a Mickey Body Truck transport vehicle compartment in a manner that prevents short circuits and damage caused by vibration or shifting during transport.

(9) Batteries, wet, non-spillable, electric storage: Batteries must be securely packed in strong packagings. The packagings must be loaded into the Mickey Body Truck transport vehicle compartments in a manner to prevent damage and short circuits in transit. The battery and outer packaging must be plainly and durably marked “NON-SPILLABLE” or “NON-SPILLABLE BATTERY.” The requirement to mark the outer package does not apply when the battery is installed in a piece of equipment that is transported unpackaged.

b. OPERATIONAL CONTROLS:

(1) Batteries and packages containing hazardous materials must be prepared, loaded, and unloaded by hazardous materials trained employees of the grantee and transported in custom designed Mickey Body Truck transport vehicles, which are owned and operated by the grantee.

(2) Batteries and packages must be transported from origin to destination within 24 hours after preparation of the package. However, for rural routes, the batteries may be stored for up to 48 hours, in which case the Mickey Body Truck transport vehicle must be ventilated within 24 hours of loading by a means such as opening a section of the doors when DDRs are carried.

- (3) Transportation is only authorized by private carriage by the grantee.
- (4) Transportation is only authorized between retail stores and distribution centers operated by the grantee.
- (5) Lithium ion batteries (new), including those packed with or contained in equipment, are not subject to Subpart C, D, and E of Part 172 provided they are packaged and transported in accordance with the provisions of this special permit. A shipping document (e.g., inventory sheets) must be carried aboard each Mickey Body Truck transport vehicle and contain the following:
  - (i) “UN3480, Contains Lithium ion batteries, Class 9”and/or, as appropriate;
  - (ii) “UN3481, Contains Lithium ion batteries contained in equipment, Class 9” and/or, as appropriate;
  - (iii) “UN3481, Contains Lithium ion batteries packed with equipment, Class 9”, as appropriate; and
  - (iv) “This shipment conforms to DOT-SP 21300”.
- (6) Lithium ion batteries (used), including those packed with or contained in equipment, are not subject to Subpart C of Part 172 provided they are packaged and transported in accordance with the provisions of this special permit. These batteries and packages are subject to Subparts D and E of Part 172. A shipping document (e.g., inventory sheets) must be carried aboard each Mickey Body Truck transport vehicle and contain the following:
  - (i) “UN3480, Contains Lithium ion batteries, Class 9”and/or, as appropriate;
  - (ii) “UN3481, Contains Lithium ion batteries contained in equipment, Class 9” and/or, as appropriate;
  - (iii) “UN3481, Contains Lithium ion batteries packed with equipment, Class 9”, as appropriate; and
  - (iv) “This shipment conforms to DOT-SP 21300”.
- (7) Damaged, defective, or recalled (DDR) lithium ion batteries, including those packed with or contained in equipment, are not subject to Subpart C of Part 172 provided they are packaged and transported in accordance with the provisions of this special permit. These packages are subject to Subparts D and E of Part

172. When DDR batteries are transported in the Mickey Body Truck transport vehicle, a shipping document (e.g., inventory sheets) that is carried aboard each Mickey Body Truck transport vehicle must contain an indication that the Mickey Body Truck transport vehicle is transporting “Damaged/defective lithium ion batteries,” as follows:

- (i) “UN3480, Contains damaged, defective or recalled Lithium ion batteries, Class 9” and/or, as appropriate;
  - (ii) “UN3481, Contains damaged, defective or recalled Lithium ion batteries contained in equipment, Class 9” and/or, as appropriate;
  - (iii) “UN3481, Contains damaged, defective or recalled Lithium ion batteries packed with equipment, Class 9”, as appropriate; and
  - (iv) “This shipment conforms to DOT-SP 21300”.
- (8) Spill response procedures must be in place and operational to address incidents during transportation or release of a hazardous material.
- (9) All batteries and packages must be secured against movement in each compartment of the Mickey Body Truck transport vehicle.
- (10) Complete training records must be maintained on every hazardous materials employee involved in transportation conducted under the terms of this special permit.
- (11) No other materials may be transported in a compartment containing lithium ion batteries (including when packed with or contained in equipment).
- (12) Lithium ion batteries (including when packed with or contained in equipment) must be placed in a completely enclosed compartment without access to other compartments in the Mickey Body Truck transport vehicle.
- (13) Mickey Body Truck Transport Vehicle Marking:
- (i) UN ID number “3480” must be marked either on an orange panel conforming to § 172.332(b) or on a white square-on-point configuration conforming to § 172.336(b); and
  - (ii) Either an orange panel marked “3480” or a white square-on-point configuration marked “3480” must be securely affixed on each side and each end of the Mickey Body Truck transport vehicle.

(14) The Mickey Body Truck transport vehicle must be marked in accordance with paragraph 7.b.(13) if:

(i) Both UN3480 and UN3481 are transported in the Mickey Body Truck transport vehicle; or

(ii) UN3480 is transported in the Mickey Body Truck transport vehicle; or

(iii) UN3481 is transported in the Mickey Body Truck transport vehicle.

(15) The Mickey Body Truck transport vehicle may not be marked in accordance with paragraph 7.b.(13) if neither UN3480 nor UN3481 is transported on the vehicle:

(16) When conforming to the terms of this special permit, batteries containing acid or alkali, battery acid fluid, non-spillable wet batteries, and lithium ion batteries (including those packed with or in equipment) may be transported in the same Mickey Body Truck transport vehicle.

c. TESTING REQUIREMENTS:

(1) Lithium ion batteries (new): Each cell and battery must be of a type that has successfully passed the required tests in accordance with the Manual of Tests and Criteria, 6<sup>th</sup> Revised Edition.

(2) DDR Batteries: Each DDR lithium ion battery must be of a type that has successfully passed the required tests in accordance with the Manual of Tests and Criteria, 6<sup>th</sup> Revised Edition prior to becoming DDR.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit and, if packaged in accordance with paragraph 7.a.(3), DOT-SP 16011 must be carried aboard each motor vehicle used to transport batteries and packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
  - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this



special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "William Schoonover", is written over a faint circular stamp.

for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Steve H/NICKS